

Copyright & DMCA Compliance Operations Manual

The operating system, creator obligations, administrative controls and launch requirements accompanying VYBE's designated-agent registration.

STATUS

V24.41G2B is a technical and operational draft. It does not make VYBE legally compliant by itself. Configure the registered agent, add transactional email, train responders and obtain attorney approval before production reliance.

What the system implements

- Public copyright policy and structured takedown form.
- Versioned creator acceptance before new music uploads.
- Creator counter-notice and rights-audit center.
- Administrator case queue with access-disable, restoration, legal-hold and strike controls.
- Neutral random audits plus documented risk-based checks.
- Immutable-style event history, timestamps, original-state snapshots and private case data.

What remains external

- Copyright Office designated-agent registration and three-year renewal.
- Attorney-approved terms, policy, response decisions and retention schedule.
- Working copyright mailbox, backup recipient and transactional email delivery logs.
- Secure evidence-document upload/scanning and attorney escalation.

1. Roles and separation of duties

Role	Responsibility	May not
Designated agent	Receive notices and forward/process them under the service agreement.	Be assumed to make every legal decision unless contracted to do so.
VYBE intake reviewer	Preserve submissions, check completeness, identify material and document actions.	Promise an outcome or provide legal advice.
Authorized administrator	Disable/restore access, assign cases, request information and document strikes.	Issue a strike merely because a notice arrived.
Counsel	Review disputed ownership, fair use, court actions, mass notices and high-risk decisions.	Be bypassed where the escalation policy requires review.
Creator	Provide accurate rights information, preserve evidence and comply with restrictions.	Re-upload disabled material or evade an account restriction.

Two-person continuity

At least two trained people must receive deadline reminders. A third-party agent protects address privacy and receives notices, but VYBE still needs an accountable internal owner and backup.

2. Notice-to-resolution workflow

Stage	Control	Evidence retained
Receive	Public form or agent channel creates a case and reference number.	Original notice, attachments, headers and receipt time.
Validate	Check statutory elements; request missing information; escalate ambiguity.	Checklist, reviewer, requests and responses.
Disable	Select exact track, playlist or product; snapshot state; restrict access.	Target ID, prior state, decision notes and time.
Notify creator	Explain affected material and counter-notice route promptly.	Approved message and delivery log.
Counter-notice	Check required statements; forward to claimant; record transmission.	Counter-notice, forwarding time and recipient.
Restore/hold	Use the statutory process; confirm no qualifying court action or legal hold.	Date calculation, confirmation and restored state.
Close	Record outcome, strike decision, reversals and retention status.	Complete event history and legal-hold status.

Counter-notice timing

Under 17 U.S.C. §512(g), restoration ordinarily occurs not less than 10 and not more than 14 business days after receipt of a compliant counter-notice, unless the designated agent receives notice of a qualifying court action. The software produces weekday-based reminders; staff must verify federal holidays and counsel instructions.

3. Creator rules and enforcement

Required creator promises

- Own or possess written authority for the recording, composition, contributors, samples, beats, artwork and selected uses.
- Identify contributors and conflicts accurately.
- Maintain evidence and cooperate with reasonable rights checks.
- Do not bypass a disabled-content or account restriction.
- Accept updated required documents before future uploads when versions change.

Strike framework

- A notice is an allegation—not automatically a strike.
- A documented determination may create a counting strike.
- A reversed determination stops counting.
- Three counting strikes within a rolling 12 months trigger suspension and termination review.
- VYBE may act sooner for deliberate, serious or repeated behavior and may document exceptions in appropriate circumstances.

Account controls

Status	Effect
Good standing	Normal access, subject to plan and other policies.
Upload hold	Existing account remains accessible; new uploads blocked.
Sales hold	Commerce listings retired; orders and evidence preserved.
Suspended	Public tracks become private, playlists unlisted and commerce retired pending review.
Terminated	Account access/action determined under final Terms, legal obligations and buyer-continuity rules.

4. Rights audits

Random selection

Once per month, an authorized administrator may select approximately 5% of eligible public tracks, capped at 25. Selection must be neutral and must not use race, ethnicity, gender, genre, popularity, viewpoint or another protected or irrelevant characteristic.

Risk-based selection

- Music offered for sale.
- A copyright complaint or ownership dispute.
- A prior counting strike.
- Metadata inconsistent with declared ownership.
- Suspected re-upload or other documented concern.

Evidence and outcomes

- Request only evidence relevant to the item: split sheets, contributor permission, beat licenses, sample clearance, artwork permission and ownership authority.
- Normally allow 10 days and reasonable documented extensions.
- Keep documents private and malware-scanned when secure upload is added.
- Record approved, changes requested, escalated or closed.
- No response may lead to a temporary operational hold, not an automatic copyright strike.

5. Production launch checklist

Gate	Pass condition
Registration	Agent listing is active, current and includes all public alternate names.
Public page	Website agent information exactly matches the registration and /copyright is linked from every public footer/legal menu.
Policies	Counsel approves DMCA policy, creator agreement, repeat-infringer policy, counter-notice wording and retention schedule.
Email	copyright@ address, backup recipient, templates, delivery logging and deadline alerts pass tests.
Security	Admin-only PII, least-privilege policies, audit history, encrypted backups and secure evidence transfer.
Training	Two responders complete a mock notice, takedown, counter-notice, forwarding, hold and restoration exercise.
Operations	Attorney escalation, court-paper handling, holidays, absences, renewals and incident response are assigned.
Commerce	Copyright controls are coordinated with payout holds, refunds and permanent buyer entitlements before checkout.

DO NOT CLAIM SAFE HARBOR

VYBE should not state that it is immune or fully compliant merely because registration and this bundle exist. Eligibility depends on applicable law and VYBE's actual, consistent conduct.

6. Required external tools

Need	Minimum capability
Designated-agent service	Public contact information, reliable forwarding, retention and defined handling of notices/counter-notices.
Transactional email	Templates, verified domain, delivery/bounce logs and escalation alerts.
Secure evidence exchange	Private uploads, malware scanning, access expiration and admin/counsel permissions.
Case deadline monitoring	Daily overdue alerts, backup recipient and holiday-aware manual confirmation.
Legal support	Copyright/Internet counsel available for disputes, fair use, court actions and policy review.
Security monitoring	Admin audit logs, failed-action alerts, database backups and incident response.

Authoritative references

U.S. Copyright Office — Section 512 Resources

<https://www.copyright.gov/512/>

DMCA Designated Agent Directory

<https://www.copyright.gov/dmca-directory/>

DMCA Directory FAQ

<https://www.copyright.gov/dmca-directory/faq.html>

17 U.S.C. Chapter 5

<https://www.copyright.gov/title17/92chap5.html>

37 C.F.R. §201.38

<https://www.copyright.gov/title37/201/37cfr201-38.html>

Legal notice

This manual is a product and operations draft, not legal advice. VYBE must obtain advice from qualified counsel before relying on it or enabling commerce.